

MULRY, JR. v LAKESIDE VENTURES, LLC, et al.

23CV47109

**PLAINTIFF'S DEFAULT HEARING AS TO DEFENDANT LAKESIDE VENTURES<
LLC**

The Court notes that defendant has a Motion to Set Aside Default on calendar on March 14, 2025. Therefore, in the interests of judicial economy, Plaintiff's scheduled default prove-up hearing as to said defendant is rescheduled for March 21, 2025, on the same calendar as Plaintiff's "demurrer to counterclaim".

The Clerk shall provide notice of this Ruling to the parties forthwith. No further formal Order is required.

HESSLER v KAUTZ VINEYARDS

21CV45613

DEFENDANT'S MOTION TO DISMISS

This is a personal injury case arising out of Plaintiff Darlene Hessler's ("Plaintiff") alleged fall at the Kautz Vineyards dba Ironstone Winery ("Ironstone") on October 6, 2019. Now before the Court is Ironstone's motion to dismiss pursuant to Code of Civil Procedure sections 583.410 and 583.420.

Code of Civil Procedure section 583.410(a) provides:

The court may in its discretion dismiss an action for delay in prosecution pursuant to this article on its own motion or on motion of the defendant if to do so appears to the court appropriate under the circumstances of the case.

Discretionary dismissal may be ordered if an action is not brought to trial within two years after the action is commenced against the defendant if the Judicial Council by rule so prescribes. (Cal. Rules of Court, Rule 3.1340(a); Code Civ. Proc., § 583.420(a)(2).) Additionally, the court has the inherent authority to dismiss an action. (Code Civ. Proc., § 583.150.) In ruling on a motion to dismiss under Code of Civil Procedure sections 583.410-583.430, the Court must consider all relevant matters, including: (1) The court's file in the case and the declarations and supporting data submitted by the parties and, where applicable, the availability of the moving party and other essential parties for service of process; (2) The diligence in seeking to effect service of process; (3) The extent to which the parties engaged in any settlement negotiations or discussions; (4) The diligence of the parties in pursuing discovery or other pretrial proceedings, including any extraordinary relief sought by either party; (5) The nature and complexity of the case; (6) The law applicable to the case, including the pendency of other litigation under a common set of facts or determinative of the legal or factual issues in the case; (7) The nature of any extensions of time or other delay attributable to either party; (8) The condition of the court's calendar and the availability of an earlier trial date if the matter was ready for trial; (9) Whether the interests of justice are best served by dismissal or trial of the case; (10) Any other fact or circumstance relevant to a fair determination of the issue. (Cal. Rules of Court, Rule 3.1342(e).)